
IN THE FOURTH DISTRICT COURT - ALL DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

AFFIDAVIT FOR SEARCH WARRANT

STATE OF UTAH)

:ss

County of Utah)

The undersigned affiant, Detective MICHAEL GEORGE CARLE of Utah County Sheriff's Office, upon an oath or written affidavit subscribed under criminal penalty, declares:

That your affiant has reason to believe:

THAT

On the premises known as Google, LLC – An Electronic Communications Service Provider Google Legal Investigations Support 1600 Amphitheatre Parkway Mountain View, CA, 94043 Service via Google's Law Enforcement Request System (LERS) on-line Service may be via email at uslawenforcement@google.com, further described as The company known as Google LLC;

In the City of Orem, County of Utah, State of Utah, there is now certain property or evidence described as:

"NOTICE: This warrant application seeks judicial authorization for the disclosure of reverse-location information of electronic devices near a crime at or near the time of the crime. If authorized, the warrant allows law enforcement to obtain historical location information of all devices within the area described in the warrant during the specified time from entities in possession of the relevant data. The electronic devices captured in the warrant may be owned or used by both alleged criminal perpetrators and individuals not involved in the commission of a crime. For this reason, any warrant issued must require the anonymization of all devices associated with the reverse-location information."

This warrant is directed to Google, LLC, headquartered at 1600 Amphitheatre Parkway, Mountain View, California, and applies to: Records pertaining to: Identifying information according to the "Production Protocol" described below for Google accounts that reported a GPS, cellular, WiFi or Bluetooth sourced location history data generated from devices that reported a location within the geographic region bounded by the following coordinates dates and times:

Search 1:

Start Date & Time 09/10/2025 11:45:00PM MDT

End Date & Time 09/10/2025 12:00:00PM MDT

With a geographic area identified as a rectangle defined by the following latitude and longitude coordinates connected by straight lines:

Point 1: 40.281014, -111.715349

Point 2: 40.279875, -111.715339

Point 3: 40.279867, -111.713081

Point 4: 40.281618, -111.714235

The area is further described as approximately 878 S 800 W Utah Valley University in Orem Utah.

Search 2:

Start Date & Time 09/10/2025 12:15:00PM MDT

End Date & Time 09/10/2025 12:30:00PM MDT

With a geographic area identified as a rectangle defined by the following latitude and longitude coordinates connected by straight lines:

Point 1: 40.279033, -111.712529

Point 2: 40.278363, -111.711787

Point 3: 40.277891, -111.712807

Point 4: 40.278759, -111.713418

The area is further described as the roof of the Losee Center Building at the Utah Valley University in Orem Utah.

Search 3:

Start Date & Time 09/10/2025 12:15PM MDT

End Date & Time 09/10/2025 12:35PM MDT

With a geographic area identified as a polygon defined by the following latitude and longitude coordinates connected by straight lines:

Point 1: 40.279558, -111.711256

Point 2: 40.279019, -111.712092

Point 3: 40.280679, -111.711710

Point 4: 40.280574, -111.712451

Point 5: 40.280002, -111.713178

The area further described as Utah Valley University Parking lot "K" and north across "College Drive to W 925 S street and to the North-West to S799 W Street.

Search 4:

Start Date & Time 09/10/2025 12:24:00PM MDT

End Date & Time 09/10/2025 12:40PM MDT

With a geographic area identified as a rectangle defined by the following latitude and longitude coordinates connected by straight lines:

Point 1: 40.282864, -111.713313

Point 2: 40.281918, -111.713320

Point 3: 40.282808, -111.711265

Point 4: 40.281821, -111.711317

The area further described as, area around 725 W 800 S

Search 5:

Start Date & Time 09/10/2025 12:24:00PM MDT

End Date & Time 09/10/2025 12:40PM MDT

With a geographic area identified as a rectangle defined by the following latitude and

longitude coordinates connected by straight lines:

Point 1: 40.282755, -111.710248

Point 2: 40.281850, -111.710264

Point 3: 40.281918, -111.707740

Point 4: 40.282719, -111.707728

The area further described as, area around 600 W 800 S.

Having a fence around these areas should provide data that could narrow down the suspect's location data.

Production Protocol:

1. Google shall query location history data based on the Initial Search Parameters (as described above).

2. For each location point recorded within the Initial Search Parameters, Google shall produce anonymized information specifying the corresponding unique device IDs of all location data, whether derived from Global Positioning System (GPS) data, cell site/cell tower triangulation/trilateration, Bluetooth beacons, precision measurement information such as timing advance or per call measurement data, and Wi-Fi location, including the GPS coordinates, estimated radius, and the dates and times of all location recordings (with captured time zone), data source and device type (platform), during the date and time period associated with specific device IDs; (the "Anonymized List").

3. Law enforcement shall review the Anonymized List to remove device IDs that are not relevant to the investigation, for example, device IDs that were not in the location for a relevant period of time, or device's that remained at the location after law enforcement arrival. Law enforcement will also shortlist the Anonymized List by reviewing the time stamped location coordinates for each device ID and compare that against the known time and location information that is specific to this crime. Law enforcement will also compare the Anonymized List for each location and attempt to locate device IDs located at two or more identified locations.

4. If additional location information for a given anonymized device ID is needed in order to determine whether that anonymized device ID is relevant to the investigation, law enforcement may request that Google provide additional location coordinates for the time period that fall outside of the Initial Search Parameters. These contextual location coordinates may assist law enforcement in identifying anonymized device IDs that were located outside the search locations, were not within the search locations for a long enough period of time, were moving through the search locations in a manner inconsistent with the facts of the underlying case, or otherwise are not relevant to the investigation. Investigating officers and those agents acting under the direction of the investigating officers are authorized to access all data to determine if the data contains the items as described above. Those items that are within the scope of this warrant may be copied and retained by investigating officers.

5. For those anonymized Reverse Location Obfuscated IDs/Device IDs identified as relevant pursuant to the ongoing investigation through an analysis of provided records, and upon demand by law enforcement, Google shall provide identifying information for the Google accounts associated with each identified anonymized Reverse Location Obfuscated IDs/Device IDs, to include subscriber's name, street address, telephone number(s), email addresses, services and Google services subscribed to, the account created date, Terms of Service IP address and associated date and time, any SMS number(s), any nickname used,

the Google Account ID, and the last six (6) months of IP history, to include the date and time, IP addresses and type of activity, and any other Information provided by the subscriber to the service provider to establish or maintain an account or communications channel.

Order to Delay Notice: Law enforcement requests an order not to disclose as follows. This matter having come before this Court pursuant to an affidavit and petition which requests the issuance of an order commanding Google, LLC to not disclose to or notify any person of the existence of the warrant ("criminal process") attached hereto, the Court finds that:

1. The criminal process is issued pursuant to 18 U.S.C. § 2703(b)(1) (search warrant for the content) or 18 U.S.C. § 2703(c)(2) (criminal process for non-content records), therefore Google LLC is not required provide notice to the subscriber or customer;

2. The Petition is valid pursuant to 18 U.S.C. § 2703 (b); and

3. Per 18 U.S.C. § 2705(a), and there is reason to believe that the notification to any person, other than as is necessary to provide the demanded records, documents, data, and /or content of the existence of the criminal process will result in:

Flight from prosecution;

Destruction of or tampering with evidence;

Intimidation of potential witnesses; or

Otherwise seriously jeopardizing an investigation or unduly delaying a trial.

and that said property or evidence:

Was unlawfully acquired or is unlawfully possessed;

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-201 Criminal Homicide.

The facts to establish the grounds for issuance of a Search Warrant are:

OFFICER TRAINING AND EXPERIENCE

I am currently assigned to the Special Victims Unit for the Utah County Sheriff's Office. I have been through the POST training academy and have been trained and certified as a Utah Peace Officer since April 2015, starting with Lehi Police Department for 6 years which consisted of approximately 3 years on patrol with another approximately 2 and a half years in the special victim's unit. I then moved to work for the Utah County Sheriff's Office and in my first 3 years there, I was assigned to the law enforcement patrol unit. In my time on patrol, I have investigated a wide variety of cases including DUI's, drugs, domestic violence, thefts, frauds, assaults, sex offenses, crimes against children as well as undercover work within the special victim's unit and as part of the FBI Child Exploitation Task Force. During my time as a police officer, I have been trained and certified as a drug recognition expert and have done dozens of drug evaluations. I have had several DUI arrests both involving alcohol and drugs.

While working for Lehi Police Department in the special victim's unit I worked crimes against children with an emphasis in online sex crimes. I was a task force officer with the

FBI Child Exploitation Task force and started working with them in February 2018 through the rest of my time with Lehi PD. During that time, I have worked and been part of hundreds of arrests for online crimes against children. I have also been the lead detective on several sex crimes, property crimes and all manner of crimes against people such as attempted homicide.

I am currently assigned to the Special Victims Unit (SVU) with the Utah County Sheriff's Office and am primarily assigned to work cybercrimes involving the sexual exploitation of minors. During my time as a sworn officer, I have investigated thousands of cases which have led to successful convictions in the court system. I have been trained as a forensic interviewer and have been to several interview and interrogation trainings and applied what has been taught in my investigations. As an SVU detective I have investigated several cases involving the sexual exploitation of children, online enticement of children and even homicide. In my current assignment I am investigating online crimes against children. I have also attended and completed the training at the ICAC bootstrap academy. I have since been approached by the FBI Child Exploitation Task Force and was reinstated as a Task Force officer with them. My experience in investigations has been refined and is continually improving as I further my career. I have also attended and completed the training at the ICAC bootstrap academy. I have since been approached by the FBI Child Exploitation Task Force and was reinstated as a Task Force officer with them. My experience in investigations has been refined and is continually improving as I further my career.

I have investigated, domestic violence cases, stalking cases, and many cases involved in threats both in person and online through emails, texts, and social media. I have investigated homicides, attempted murder, aggravated assault, electronic communication harassment and similar offenses. In my career, personal life, and experience, I have learned that people store a wide range of material on their cell phones. I have learned that when people are threatened, there is often a record of those threats on their phones. This record may take the form of screenshots of public or private communications like social media posts, cached websites, records of websites, social media, and other apps which show content accessed by the user, personal notes, emails, texts, and other communications which describe the threats the user has received to others like loved ones, associates and people who can help protect the threatened person.

I have investigated cases where surveillance footage has captured images of suspects, crimes, and evidence. Many businesses have video surveillance systems which have been helpful in identifying the facts of the cases I have investigated and the identities of witnesses and suspects.

The following information was obtained by your affiant from police officers, multiple video recordings posted on social media websites, Utah Valley University campus surveillance cameras and those who witnessed the incident.

1. On September 10, 2025, Charles James Kirk was at the Utah Valley University campus in Orem, Utah, for a political event. According to video recordings, Charles was wearing a white T-shirt and dark pants, sitting under a white canopy in a courtyard of the campus facing to the east. Charles was holding a microphone and speaking to a crowd. While speaking into the microphone, a loud gunshot was heard at approximately 12:23 hours, and Charles appeared to have been hit in the neck. Blood was seen coming out of the left side of his neck as he fell over to his left. Charles was transported to the Timpanogos Regional Hospital in Orem. Charles was pronounced deceased at the hospital.

2. Utah Valley University Police were able to view surveillance footage of the suspect and capture him walking south on 800 W near 875 S. The suspect is seen traveling through a tunnel under Campus Drive. These are the plots listed in "Search 1"

3. While investigating this incident, law enforcement obtained videos from citizens showing someone on the roof of the Losie Building at UVU. Video surveillance was obtained from UVU showing the roof of the Losie Building. At 12:22 video footage shows an individual (suspect) dressed in all black/dark clothes quickly moving across the roof. As the suspect approached the edge of the roof, the suspect began to crawl to the edge where he /she took a prone position with a long object in hand. This position had a clear view of Charles Kirk. It appeared that suspect shot 1 round from a firearm and then quickly stood and began to run to the North. The suspect jumped off of the edge of the building approximately 12-15 feet to the ground. In the process of getting down, the suspect dropped the long object and then appeared to pick it up, readjust it and continued running North till the suspect crossed the street (Campus Dr) and went into a large group of trees that backed up to a neighborhood. These are the plots listed in "Search 2" and "Search 3"

4. Law enforcement spoke with a contractor/construction worker who was doing some work in a neighboring yard to the location of the trees. This witness stated that he observed a male run through the trees into the neighborhood. The first street the suspect would have come to is, W 925 S st. At this point it is unknown if the suspect traveled to the North-West or the North-East. 925 S has 2 street entrance/exits to this neighborhood, to the North-West it turns to 725 W and to the North-East it turns to 600 W. These areas are points of interest as the suspect should have needed to exit the neighborhood through these intersections. These are the plots listed in "Search 4" and "Search 5".

5. On 09/11/2025, in preparation for this search warrant, I conducted research on what cellphone systems are operating in the area. I used smart phone applications to obtain WiFi, Bluetooth, and cellphone tower information. It receives information from the towers, the routers, and Bluetooth devices then displays it on the phone. I learned there were multiple cellphone towers, WiFi routers and Bluetooth devices within range.

6. Based on my training and experience, I know most people in today's society possess cellular phones and other connected devices (e.g. tablets, watches, laptops) used to communicate electronically. I know these devices are capable of sending and receiving communications in many different forms. I know most people carry cellular phones on their person and will carry them whenever they leave their place of residence. I know that cellular phones may include global positioning systems (GPS) and other technology for determining a more precise location of the device. It is probable that a geofence in the areas mentioned will provide suspect location data and narrow down the search. Video surveillance showed the suspect using his phone multiple times while with-in the geo-fence plotted coordinates at the requested times.

7. I know a subject's physical cellular phone often times does not retain all the data relevant to a specific crime. Portions of this data may only be on the Electronic Communications Service Provider's server located in the subscriber's account. Google services are often interconnected with a log-in to a Google account allowing access to many of the other Google services.

8. Google is also a company which provides electronic communication services to subscribers, including email services. Google allows subscribers to obtain email accounts

at the domain name gmail.com and/or google.com. Subscribers obtain an account by registering with Google. A subscriber using the provider's services can access his or her email account from any computer or smart phone/device connected to the Internet. Google e-mail started in 2004.

9. Google has developed an operating system for mobile devices, including cellular phones, watches and tablets known as Android, that has a proprietary operating system. Nearly every cellular phone using the Android operating system has an associated Google account, and users are prompted to add a Google account when they first activate a new Android device.

10. I know nearly every Android powered device has an associated Google account. I also know that Apple iPhone's supports several Google applications, such as Google Search, Gmail, Google Maps, and Google Drive, all of which require a Google account. I also know Google continuously tracks devices with an associated Google account.

11. Based on my training, experience and conversations I've had with other law enforcement officers and/or from reviewing documentation, I know that Google collects and retains location data on their servers (also known as the "Sensorvault" database) from Android enabled mobile devices, as well as devices supporting Google applications such as Google Search, Gmail, Google Maps, and Google Drive, so long as the location services of the phone are enabled. Google launched mobile maps in 2007, Their location history started in 2009, and their first android application was launched in 2008. The location data gathered is stored forever, unless it is deleted by the user. The company uses this information for location based advertising and location-based search results. Per Google, this information is derived from Global Position System (GPS) data, cell site/cell tower information, Bluetooth beacons, and Wi-Fi access points. While the specific parameters of when this data is collected are not entirely clear, it appears that Google collects this data not only whenever one of their services is activated and/or whenever there is an event on the mobile device such as a phone call, text messages, internet access, or email access, but also when the user is not interacting with the device (e.g. applications running in the background).

12. Additionally, location information digitally integrated into images, videos, or other computer files sent via the cellular phone can further indicate the geographic location of the account's user at a particular time. Digital cameras, including cameras built into a cellular phone, frequently store GPS coordinates in the metadata of image files, indicating where a photo was taken. These image files may be stored in the account user's Google cloud storage.

13. Based on my training and experience, I know when a user activates a Google Account, Google will request an associated phone number for the user, to assist in password recovery if a password is forgotten or for security purposes.

14. Given that almost all cellular phones and connected devices are either supported by Google or support Google software and most people in today's society carry a cellular phone or other connected device on their person at nearly all times, I believe it is likely the suspect(s) involved in this criminal investigation were in possession of at least one cellular phone/device, which was either powered by Android OS or had a cellular phone with a Google application.

15. Based on my training and experience, suspects involved in criminal activity will

typically use cellular phones to communicate when multiple suspects are involved. I am also aware Android based cellular phones report detailed location information to Google, where the geo-location and electronic data is then stored on their servers.

16. The timeframes of the Google request of 09/10/2025 at 11:35 hours to 09/10/2025 at 12:40 hours will allow investigators to see which Google device IDs were present in the geographic area prior to, during, and after the crime. The information provided by the extended timeframe and times when entering and exiting the geographical area will allow investigators to determine which device IDs require further investigation and which ones do not. The initial device IDs provided by Google do not include any subscriber information and is provided in an anonymized list.

17. I believe the information provided by Google will assist investigators in understanding a bigger geographic picture and timeline, which may tend to identify potential witnesses, as well as possibly inculcate or exculpate the account owners. I therefore believe that it is likely that a review of Google's location history will help law enforcement in developing suspect(s) in the crime of, 76-5-201- Criminal Homicide.

18. As such, I am requesting a list of any Google anonymized device IDs in a geographic area around the UVU campus further described as the GPS location coordinates mentioned above. In particular, the geographical region(s) identified in Attachment A and the date(s) and time(s) specified. This Application seeks authority to collect certain location information related to Google device IDs that were located within the Target Location(s) during the Date and Time Period (Anonymized List).

19. The information sought from Google regarding the Anonymized List will potentially identify which cellular phones/devices were near the location where the crime occurred and may assist law enforcement in determining which persons were present or involved in the crime under investigation. Law enforcement will be able to narrow devices to those which were in all relevant areas. This is expected to drastically reduce the number of devices that will need to be identified. Once the devices are narrowed to only those which are in each of the relevant areas (of course search 5 and 6 are alternatives and we would not expect to find a device in both places at the same time), law enforcement will then request Google to identify only those relevant devices which is expected to yield the identifies of cell owners who were in the location of the shooter when he fired shots, and when he fled through these known and likely areas of flight.

20. Law enforcement shall review the Anonymized List to remove device IDs that are not relevant to the investigation, such as device IDs that were not in the location for a sufficient period of time. If additional location information for a given device ID is needed in order to determine whether that device is relevant to the investigation, law enforcement may request that Google provide additional location coordinates for the time period that fall outside of the target location. These contextual location coordinates may assist law enforcement in identifying devices that were located outside the target location, were not within the target location for a long enough period of time, were moving through the target location in a manner inconsistent with the facts of the underlying case, or otherwise are not relevant to the investigation.

21. I have previously sent search warrants to Google, LLC. I have confirmed Google LLC accepts search warrants at the following location: Google Legal Investigations Support Google LLC 1600 Amphitheatre Parkway Mountain View, CA 94043 Phone number (844)383-8524 Service may be via email at uslawenforcement@google.com or

through their law enforcement portal.

22. Based on my training and experience, I know that the requested records are maintained in electronic format. I know Google does not accept investigative subpoenas and requires a search warrant. I also know that Google prefers to produce records in an electronic format and those electronic records are easier for investigators, prosecution, and defense to use. Therefore, I request an order that any records be provided in electronic format to the following address:

Detective Michael Carle
Utah County Sheriff's Office
3075 N. Main, Spanish Fork, Ut 84660
michaelc@utahcounty.gov
Phone: 801-851-8366 Cell: 801-369-6176

23. The facts set forth in this affidavit are based upon my own personal observations, my training and experience, and information obtained during this investigation. Therefore, based on the above facts, I have probable cause to believe, and do believe, that evidence of the commissions of felonies, in violation(s) of Utah State Law 76-5-201- Criminal Homicide, will be located on the premises described above. I request that a search warrant be issued with respect to the above location for the seizure of said property. Order to Delay Notice: Law enforcement requests an order not to disclose as follows: This matter having come before this Court pursuant to an affidavit and petition which requests the issuance of an order commanding Google, LLC to not disclose to or notify any person of the existence of the warrant ("criminal process") attached hereto, the Court finds that:

1. The criminal process is issued pursuant to 18 U.S.C. § 2703(b)(1) (search warrant for the content) or 18 U.S.C. § 2703(c)(2) (criminal process for non content records), therefore Google LLC is not required provide notice to the subscriber or customer;
2. The Petition is valid pursuant to 18 U.S.C. § 2703 (b); and
3. Per 18 U.S.C. § 2705(a), and there is reason to believe that the notification to any person, other than as is necessary to provide the demanded records, documents, data, and /or content of the existence of the criminal process will result in: Endangering the life or physical safety of an individual; Flight from prosecution; Intimidation of potential witnesses; or Otherwise seriously jeopardizing an investigation or unduly delaying a trial.

I further state that the other means of preventing the identified results of the aforementioned disclosure or notification are not readily employable because: I do not know the true identity of the suspect in this investigation; I do not know the current location of the suspect in this investigation; I do not know the location of or description of specific evidence the suspect may possess or to which the suspect may have access to.

It is hereby ordered that Google and the executing agency shall delay notification of the existence of this warrant, or the existence of the investigation, to the subscribers or to any other person: for a period of time not less than 6 months.

I believe that there is an imminent and ongoing threat to public safety because the shooter is still at large and a threat to the public.

In compliance with Utah Code 77-23f-102, a map or other visual depiction that represents the geofence for which the warrant is seeking information is required to be attached to this Affidavit. The map has been created and made available to the on-call Judge.

WHEREFORE, your affiant prays that a Search Warrant be issued for the seizure of said items in the daytime.

APPLICATION TO SEAL SEARCH WARRANT AND RELATED DOCUMENTS:

Your Affiant requests, pursuant to Utah Rule of Crim. P. 40(m) that the search warrant, application, and affidavit or other recorded testimony upon which the warrant is based, to include this application for an order sealing such documents, be SEALED until 03/11/2026 for the following reasons:

- cause a substantial risk of harm to a person's safety;
- pose a serious impediment to the investigation;

The identity of the suspect involved in this case has not yet been identified and I believe should information contained in this affidavit be released, it could pose a serious impediment to the investigation or cause a substantial risk of harm to the safety of others.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 11th day of September, 2025 @ 03:56 AM by /s/ MICHAEL GEORGE CARLE

IN THE FOURTH DISTRICT COURT - ALL DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

SEARCH WARRANT

No. 3212601

COUNTY OF UTAH, STATE OF UTAH

To any peace officer in the State of Utah:

Proof by Affidavit made upon oath or written affirmation subscribed under criminal penalty of the State of Utah having been made to me by Detective MICHAEL GEORGE CARLE of Utah County Sheriff's Office, this day, I am satisfied that there is probable cause to believe

THAT

On the premises known as Google, LLC – An Electronic Communications Service Provider Google Legal Investigations Support 1600 Amphitheatre Parkway Mountain View, CA, 94043 Service via Google's Law Enforcement Request System (LERS) on-line Service may be via email at uslawenforcement@google.com, further described as The company known as Google LLC;

In the City of Orem, County of Utah, State of Utah, there is now certain property or evidence described as:

"NOTICE: This warrant application seeks judicial authorization for the disclosure of reverse-location information of electronic devices near a crime at or near the time of the crime. If authorized, the warrant allows law enforcement to obtain historical location information of all devices within the area described in the warrant during the specified time from entities in possession of the relevant data. The electronic devices captured in the warrant may be owned or used by both alleged criminal perpetrators and individuals not involved in the commission of a crime. For this reason, any warrant issued must require the anonymization of all devices associated with the reverse-location information."

This warrant is directed to Google, LLC, headquartered at 1600 Amphitheatre Parkway, Mountain View, California, and applies to: Records pertaining to: Identifying information according to the "Production Protocol" described below for Google accounts that reported a GPS, cellular, WiFi or Bluetooth sourced location history data generated from devices that reported a location within the geographic region bounded by the following coordinates dates and times:

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- Page 1 of 4 Search Warrant No. 3212601 -

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The area is further described as approximately 878 S 800 W Utah Valley University in Orem Utah.

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The area is further described as the roof of the Losee Center Building at the Utah Valley University in Orem Utah.

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The area further described as Utah Valley University Parking lot "K" and north across "College Drive to W 925 S street and to the North-West to S799 W Street.

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Having a fence around these areas should provide data that could narrow down the suspect's location data.

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3. Law enforcement shall review the Anonymized List to remove device IDs that are not relevant to the investigation, for example, device IDs that were not in the location for a relevant period of time, or device's that remained at the location after law enforcement arrival. Law enforcement will also shortlist the Anonymized List by reviewing the time stamped location coordinates for each device ID and compare that against the known time and location information that is specific to this crime. Law enforcement will also compare the Anonymized List for each location and attempt to locate device IDs located at two or more identified locations.

4. If additional location information for a given anonymized device ID is needed in order to determine whether that anonymized device ID is relevant to the investigation, law enforcement may request that Google provide additional location coordinates for the time period that fall outside of the Initial Search Parameters. These contextual location coordinates may assist law enforcement in identifying anonymized device IDs that were located outside the search locations, were not within the search locations for a long enough period of time, were moving through the search locations in a manner inconsistent with the facts of the underlying case, or otherwise are not relevant to the investigation. Investigating officers and those agents acting under the direction of the investigating officers are authorized to access all data to determine if the data contains the items as described above. Those items that are within the scope of this warrant may be copied and retained by investigating officers.

5. For those anonymized Reverse Location Obfuscated IDs/Device IDs identified as relevant pursuant to the ongoing investigation through an analysis of provided records, and upon demand by law enforcement, Google shall provide identifying information for the Google accounts associated with each identified anonymized Reverse Location Obfuscated IDs/Device IDs, to include subscriber's name, street address, telephone number(s), email addresses, services and Google services subscribed to, the account created date, Terms of Service IP address and associated date and time, any SMS number(s), any nickname used, the Google Account ID, and the last six (6) months of IP history, to include the date and time, IP addresses and type of activity, and any other Information provided by the subscriber to the service provider to establish or maintain an account or communications

channel.

Order to Delay Notice: Law enforcement requests an order not to disclose as follows. This matter having come before this Court pursuant to an affidavit and petition which requests the issuance of an order commanding Google, LLC to not disclose to or notify any person of the existence of the warrant ("criminal process") attached hereto, the Court finds that:

1. The criminal process is issued pursuant to 18 U.S.C. § 2703(b)(1) (search warrant for the content) or 18 U.S.C. § 2703(c)(2) (criminal process for non-content records), therefore Google LLC is not required provide notice to the subscriber or customer;
2. The Petition is valid pursuant to 18 U.S.C. § 2703 (b); and
3. Per 18 U.S.C. § 2705(a), and there is reason to believe that the notification to any person, other than as is necessary to provide the demanded records, documents, data, and /or content of the existence of the criminal process will result in:

Flight from prosecution;

Destruction of or tampering with evidence;

Intimidation of potential witnesses; or

Otherwise seriously jeopardizing an investigation or unduly delaying a trial.

and that said property or evidence:

Was unlawfully acquired or is unlawfully possessed;

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-201 Criminal Homicide.

YOU ARE THEREFORE COMMANDED:

to make a search in the daytime of the above-named or described person, vehicle, item, and/or premises for the herein-above described property or evidence and if you find the same or any part thereof, retain such property in your custody subject to the direction of a prosecutor or an order of this Court.

ORDER TO SEAL

Based upon the Application to Seal in the accompanying Affidavit in Support of Search Warrant, IT IS HERBY ORDERED that that the search warrant, application, and affidavit or other recorded testimony upon which this search warrant is based, to include the application for an order sealing such documents, is SEALED until 03/11/2026.

Dated: 11th day of September, 2025 @ 04:12 AM /s/



RETURN TO SEARCH WARRANT

NO. 3212601

The personal property listed below or set out on the inventory attached hereto was taken from the person of Google, LLC, by virtue of a search warrant dated the 11th day of September, 2025, and issued by Magistrate BARBARA FINLINSON of the FOURTH DISTRICT COURT - ALL DEPARTMENT:

No data was stored by Google LLC.

I, Detective MICHAEL GEORGE CARLE of Utah County Sheriff's Office, by whom this warrant was executed, do swear that the above listed or below attached inventory contains a true and detailed account of all the property taken by me under the warrant, on the 11th day of September, 2025.

All of the property taken by virtue of said warrant will be retained in my custody subject to the order of this Court or of any other court in which the offense in respect to which the property, or things taken, is triable.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 23rd day of September, 2025 @ 01:07 PM by /s/ MICHAEL GEORGE CARLE